



March 14, 2025

VIA EMAIL

AI Action Plan
Attn: Faisal D'Souza
NCO
2415 Eisenhower Ave
Alexandria, VA 22314

Re: Executive Order 14179: Artificial Intelligence Action Plan

Dear Mr. D'Souza:

On behalf of the AI Coalition for Data Integrity I am writing in response to the Request for Information (RFI), that seeks responses to Executive Order 14179, regarding the Development of the Artificial Intelligence (AI) Action Plan ("Plan").¹

I. Introduction

President Trump signed Executive Order 14179 (Removing Barriers to American Leadership in Artificial Intelligence) on January 23, 2025. The Order directs the development of an AI Action plan to "advance America's AI leadership." The Order follows President Trump's previous Executive Order revoking the Biden-Harris AI Executive Order 14110, which imposed "burdensome requirements restricting private sector AI development and deployment." One "burdensome requirement" in AI development and deployment is the uncertainty surrounding the

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transparency, attribution, and licensing of AI training data sets. Promoting legal certainty through transparency of AI training data, mandating as appropriate AI output attribution and building strong AI training data licensing frameworks, best practices and agreements will advance U.S. AI leadership and growth.

II. Introduction to the AI Coalition for Data Integrity

The AI Coalition for Data Integrity is a multi-stakeholder, cross-industry organization committed to promoting legal and ethical AI development by advocating for transparency, proper attribution, and fair remuneration in AI. These three pillars, Transparency, Attribution, and Licensing help establish a robust AI ecosystem ensuring innovation and growth in U.S. AI leadership.

The coalition comprises AI developers, technology companies, content creators, academic researchers, trade associations, guilds, unions, and individuals who recognize that a legal and ethical AI data training landscape fosters trust, enhances the reliability and value of AI outputs, and strengthens the competitive position of American AI companies in the global market.

III. Transparency, Attribution, and Licensing Enhance U.S. AI Innovation and Leadership

Far from stifling AI development, mandating transparency, requiring attribution, and promoting licensing enhance AI development because they eliminate legal uncertainty, encourage high quality data-sharing, and promote AI deployment. Implementing these principles ensures that AI-driven innovation benefits all stakeholders — including developers, data providers, content creators and the public.

A. Reducing Legal Disputes and Eliminating Lawsuits

The explosion of litigation over unauthorized data scraping, antitrust claims, copyright violations, and misuse of others' proprietary information could be addressed, at least in part, by the Executive Branch clearly setting out the need for transparency, attribution and use of licensed data. High-profile lawsuits have been filed against AI developers for ingesting other entities' content (including copyrighted content) without authorization.² Policymakers should promote clear standards for transparency and attribution, as well as improve incentives for respecting copyright. In doing so, the U.S. can significantly reduce the likelihood of protracted legal battles, thereby creating a stable regulatory environment for AI development.

B. Providing Legal Certainty for AI Development

The current AI training data use landscape has created uncertainty among AI companies and investors, including those building AI tools through licensed data sets, as well as damaging copyright holders, content creators, and companies that disseminate business and professional data across the internet. By adopting requirements for transparency in AI training data, attribution to original creators, and ensuring fair remuneration and licensing practices, the U.S. will provide legal clarity and make it easier for all AI developers to operate confidently without fear of future legal repercussions and consequences.

²See BakerHostetler, *Case Tracker: Artificial Intelligence, Copyrights, and Class Actions*, BAKERHOSTETLER, <https://www.bakerlaw.com/services/artificial-intelligence-ai/case-tracker-artificial-intelligence-copyrights-and-class-actions/> (last visited Mar. 6, 2025).

C. Encouraging the Use of High-Quality, Licensed Data

The U.S. AI industry will benefit from increased access to high-quality data if AI developers adhere to licensing and proper attribution frameworks.³ If developers are incentivized to work with authorized datasets rather than relying on unauthorized scraping of the internet, it will lead to better-trained models, fewer biases, and more accurate AI outputs. Companies that comply with these best practices will have a competitive advantage globally, as they will deploy AI models that are legally compliant, more reliable, and less prone to legal challenges.

D. Protecting U.S. AI Companies from Unauthorized Data Ingestion by Non-U.S. Actors

A lack of strong protections around AI data usage puts U.S. AI companies at a disadvantage in all markets. Foreign competitors (such as DeepSeek) exploit unregulated data scraping to develop AI models while U.S. companies face lawsuits and regulatory challenges. By implementing national standards for transparency, attribution, and legitimate uses/licensing, the U.S. will ensure a level playing field, protecting domestic AI companies and content creators from unfair competition and national security risks. These methods will provide the competitive advantages of trustworthy AI that's both fairly produced and fit for purpose.

³ See Transparency Coalition, *Financial Times says: AI Developers Must Legally License Training Data*, TRANSPARENCY COALITION, <https://www.transparencycoalition.ai/news/financial-times-says-ai-developers-must-legally-licensing-training-data> (last visited Mar. 7, 2025) (“The use of illegally pirated data to train the world’s most powerful AI systems is an ongoing breach of the most basic tenet of property law: What’s mine is mine and may not be used without my permission.”).

E. Enhancing AI Output Safety and Trustworthiness

Transparent AI development enhances trust among users, regulators, and stakeholders. When AI systems disclose the origins of their training data and acknowledge contributions from original data creators, they generate more reliable and ethically sound outputs. Transparency is also a crucial safeguard against AI models inadvertently propagating misinformation or bias. Establishing industry-wide best practices and legal requirements for training data transparency position the U.S. as a leader in responsible AI development.

IV. Mandating Transparency, Attribution, and Licensing Does Not Burden U.S. AI Interests

The concern over “burdensome requirements” appears to assume that any form of regulation hinders AI development and that no “burdensome requirements” already exist. Neither is true. In the absence of a working framework for transparency, attribution, and licensing, AI “burdens” already exist. For example, the European Union’s AI Act, as well as the multiple costly litigations disputes (including discovery fights) in U.S. courts can be characterized as “burdensome.”⁴ Instead transparency, attribution and licensing reduce actual burdens.

⁴ See *High-level summary of the AI Act*, EU Artificial Intelligence Act (Feb. 27, 2024), <https://artificialintelligenceact.eu/high-level-summary/>; *The Intercept Media, Inc. v. OpenAI, Inc.*, No. 24-CV-1515 (JSR), 2025 WL 556019, at *10 (S.D.N.Y. Feb. 20, 2025) (holding that the 1202(b)(3) distribution claim against OpenAI was dismissed but the 1202(b)(1) claim was allowed to proceed); Dan Jasnow, *SDNY Order Renews Possibility of Digital Millennium Copyright Act Legal Recourse for News Publishers*, NAT’L L. REV., <https://natlawreview.com/article/sdny-order-renews-possibility-digital-millennium-copyright-act-legal-recourse-news> (last visited Mar. 6, 2025) (“Perhaps the most significant consequence of the court’s decision to allow the 1202(b)(1) claim to proceed is that OpenAI could be compelled to begin discovery and provide information to The Intercept about its datasets and training process.”).

A. Addressing the "Burdensome Requirement" Concern

The unsettled legal reality has already created de facto burdens upon AI growth due to litigation costs and legal exposure. Implementing, confirming, and promoting U.S. standards will reduce uncertainty and provide AI companies (of all types) with a more structured legal ecosystem, rather than leaving them exposed to expensive and unpredictable legal battles.

B. Implementing Unified U.S. Standards Help Prevent Fragmentation

If the U.S. fails to implement a minimum, cohesive AI training data use framework, different U.S. states or different industries will develop their own conflicting regulations, leading to a fractured regulatory environment. A unified approach would prevent regulatory inconsistencies and ensure that AI companies operating in the U.S. adhere to a well-defined standard that will drive growth globally. This should be achieved through minimum federal requirements rather than full AI legal regulatory preemption, allowing states to build upon baseline protections while ensuring a consistent foundation across the country.

C. Strengthening the U.S. AI Industry for Global Competitiveness

By adopting these best practices now, the U.S. is setting the standard for AI governance worldwide. Countries that lack strong AI regulations may see increased legal and ethical challenges down the line, while the U.S. can position itself as a leader in legal and ethical AI, using quality data, fostering trust from both domestic and international stakeholders.⁵

⁵ See Peter Gratton, *How More Accessible AI Could Revolutionize Wall Street Trading*, INVESTOPEDIA, <https://www.investopedia.com/open-source-ai-wall-street-8786858> (last visited Mar. 7, 2025) ("Former Google CEO Eric Schmidt has warned that the U.S. and Europe need to focus more on building open-source AI models or risk losing ground to China on this front. This suggests that the future of financial AI may depend not just on technical capabilities, but on broader strategic decisions about how trading technology is developed and shared.").

V. Recommended Standards

To ensure that the AI Action Plan strengthens, rather than weakens, American AI leadership, we urge the inclusion of the following key standards:

A. Transparency

AI developers must disclose training data sources and methodologies to promote accountability, trust, and ensure high-quality data. AI-generated content should be clearly labeled to differentiate it from human-created work, preventing misinformation and ensuring clarity in public and commercial use. Additionally, model decision-making processes should be documented, allowing oversight in high-impact areas such as healthcare, finance, and law enforcement. AI developers and those operating on their behalf must disclose the identity and purpose of the “bots” they use to crawl and scrape internet content, in a manner that is recognizable and timely for web operators and content owners on the internet.

B. Attribution

AI systems output should acknowledge origination and ensure proper attribution through structured agreements, best practices, and U.S. copyright law. These methods should include clear crediting mechanisms to prevent unauthorized use, ensure fair recognition of contributors, and avoid abusive data scraping. Copyright holders must retain legal control over how their work is used in AI training, helping to establish legal data practices and incentivize high-quality data contributions.



C. Legitimate Use – Establishing Robust Data Markets

Data contributors across all forms of data should receive fair compensation for the use of their data in AI models. AI developers should participate in structured data licensing frameworks to ensure compliance. Robust data marketplaces should be encouraged to foster innovation while respecting intellectual property rights, privacy rights, business rights, and protecting content creators and innovation throughout the U.S.

VI. Conclusion

Executive Order 14179 seeks to advance U.S. AI leadership —AI training data transparency, attribution, and licensing are essential components of a thriving AI ecosystem that fosters innovation while protecting intellectual property and consumer trust.

We strongly urge policymakers to recognize the benefits of these foundational principles and integrate them into the AI Action Plan. By doing so, the U.S. can drive AI progress while ensuring that its development remains ethical, legally sound, and globally competitive.

Sincerely,

Tod Cohen
AI Coalition for Data Integrity